III. A THIRD attribute of the king's majeſty is his *perpetuity*. The law aſcribes to him, in his political capacity, an abſolute immortality. The king never dies. Henry, Edward, or George may die; but the king ſurvives them all. For immediately upon the deceaſe of the reigning prince in his natural capacity, his kingſhip or imperial dignity, by act of law, without any *interregnum* or interval, is veſted at once in his heir; who is, *eo inſtanti*, king to all intents and purpoſes. And ſo tender is the law of ſuppoſing even a poſſibility of his death, that his natural diſſolution is generally called his *demiſe*; *dimiſſio regis, vel coronae*: an expreſſion which ſignifies merely a transfer of property; for, as is obſerved in Plowden[z], when we ſay the demiſe of the crown, we mean only that in conſequence of the diſunion of the king's body natural from his body politic, the kingdom is transferred or demiſed to his ſucceſſor; and ſo the royal dignity remains perpetual. Thus too, when Edward the fourth, in the tenth year of his reign, was driven from his throne for a few months by the houſe of Lancaſter, this temporary transfer of his dignity was denominated his *demiſe*; and all proceſs was held to be diſcontinued, as upon a natural death of the king[a].

WE are next to conſider thoſe branches of the royal prerogative, which inveſt this our ſovereign lord, thus all-perfect and immortal in his kingly capacity, with a number of authorities and powers; in the exertion whereof conſiſts the executive part of government. This is wiſely placed in a ſingle hand by the Britiſh conſtitution, for the ſake of unanimity, ſtrength and diſpatch. Were it placed in many hands, it would be ſubject to many wills: many wills, if diſunited and drawing different ways, create weakneſs in a government: and to unite thoſe ſeveral wills, and

in caſe of a like deſcent to any of his preſent majeſty's children, empowers the king to name either the queen, the princeſs dowager, or any deſcendant of king George II reſiding in this kingdom; — to be guardian and regent, till the ſucceſſor attains ſuch age, aſſiſted by a council of regency: the powers of them all being expreſsly defined and ſet down in the ſeveral acts.

[z] Plowd. 177. 234.

[a] M. 49 Hen. VI. pl. 1—8.

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